

CONTRACTOR SERVICES AGREEMENT (DAY-RATE)

Between Boab AI Pty Ltd, trading as SMEC AI (Contractor), and BJC Health (Client)

PARTIES

Contractor	Boab AI Pty Ltd (trading as SMEC AI), ABN 60 640 047 007 ("the Contractor ")
Client	BJC Health Trading Pty Ltd , ABN 96 697 562 137 ("the Client ")
Effective date	The date of the last signature below

1. THE ENGAGEMENT

- 1.1 The Client engages the Contractor as an **independent contractor** to provide the services agreed between the parties in writing from time to time (the "**Services**"). The Contractor is not an employee, partner, or agent of the Client.
- 1.2 The Contractor provides the Services using its own equipment and methods, is free to work for others, and is responsible for its own tax, GST, superannuation, and insurances.
- 1.3 **Work is requested and agreed in writing (email is enough) and is performed on a day-rate basis (clause 2).** There is no fixed-price, milestone, or per-unit component unless the parties agree one in writing. Any estimate the Contractor gives of the days a piece of work will take is a guide only — not a cap or a fixed price.

2. FEES AND PAYMENT

- 2.1 The Contractor's rate is **\$1,200 per day (8-hour day), plus GST** — that is, \$1,320 per day including GST (= \$150 per hour plus GST), billed against time actually worked in whole or part-day blocks.
- 2.2 The Contractor issues tax invoices (showing ABN and GST), payable within **30 days**. The Contractor may pause work on overdue invoices after notice.
- 2.3 The Client pays any third-party services or infrastructure it procures directly (for example, cloud hosting, software licences, or its own IT provider) to those providers. The Contractor adds no markup.

3. INTELLECTUAL PROPERTY

- 3.1 On payment, the Contractor assigns to the Client all intellectual property rights in the **deliverables and Client-specific work** produced for the Client under this Agreement.
- 3.2 The Contractor keeps its **pre-existing and general-purpose materials, tools, and know-how** ("Background IP"), and grants the Client a perpetual, royalty-free, non-exclusive licence to use and maintain any Background IP embedded in the deliverables, including via a successor provider.
- 3.3 The Client owns its own data at all times.

4. CONFIDENTIALITY AND DATA

- 4.1 Each party keeps the other's confidential information confidential and uses it only for this engagement. This does not apply to information that is public, independently developed, or required to be disclosed by law. This clause survives termination.
- 4.2 Where the Contractor processes personal information on the Client's behalf, the Client is the data controller and the Contractor acts as processor under the *Privacy Act 1988* (Cth) and the Australian Privacy Principles, using it only to provide the Services. The Contractor will apply reasonable security measures and will notify the Client without undue delay of any actual or suspected data breach affecting that information.
- 4.3 Any specific data-handling, security, residency, or retention requirements for an engagement are as agreed between the parties in writing.

5. AUTOMATED AND AI-ASSISTED OUTPUTS

- 5.1 Where the Services produce automated or AI-generated outputs, those outputs are **not guaranteed to be accurate, complete, error-free, or uninterrupted**, and are provided as an assistive tool only — not professional, legal, medical, financial, or other regulated advice.
- 5.2 The Client is responsible for reviewing outputs before relying on them, and for any decision made using them.

6. WARRANTIES AND LIABILITY

- 6.1 **Warranties and sole remedy.** To the maximum extent permitted by law, the Contractor gives **no warranties** about the Services or any deliverable beyond those that cannot be excluded under the Australian Consumer Law, and does not warrant that any software or automated output will be error-free or uninterrupted. Where the Contractor is liable for Services that do not conform to what was agreed, or for breach of a warranty that cannot be excluded, the Client's sole remedy is, at the Contractor's election, re-performance of the affected Services at no extra cost or a refund of the Fees paid for them.
- 6.2 **Liability cap and excluded loss (mutual).** To the maximum extent permitted by law, each party's total aggregate liability under or in connection with this Agreement (whether in contract, tort including

negligence, under statute, or otherwise) is capped at the **total Fees paid by the Client in the 12 months before the event** giving rise to the liability, and neither party is liable for loss of profit, revenue, anticipated savings, data, goodwill, or business opportunity, or for any indirect, special, or consequential loss. This does not limit the Client's obligation to pay Fees properly due.

6.3 Exceptions and other limits. Despite clause 6.2:

- nothing in this Agreement excludes rights under the Australian Consumer Law that cannot be excluded; for Services not of a kind ordinarily acquired for personal, domestic, or household use, the Contractor's liability for breach of a non-excludable consumer guarantee is limited, at the Contractor's election, to **re-supplying the Services or paying the cost of having them re-supplied**;
- the cap and the exclusion of indirect loss in clause 6.2 do not apply to liability that cannot be limited at law, fraud or wilful misconduct, breach of confidentiality, or infringement of the other party's intellectual property;
- neither party may bring a claim more than **12 months** after it became aware (or reasonably should have become aware) of the circumstances giving rise to it; and
- nothing in this Agreement modifies any proportionate liability regime that applies by statute.

6.4 **Client indemnity.** The Client indemnifies the Contractor against claims, losses, or damages arising from (a) use of the deliverables in a manner not contemplated by this Agreement; (b) decisions or outcomes based on the deliverables or their outputs; or (c) failure of the Client's or its providers' systems or environment — in each case reduced to the extent the Contractor caused the loss.

7. TERM AND TERMINATION

7.1 This Agreement starts on the Effective date and continues until terminated. Either party may terminate for convenience on **30 days'** written notice, or immediately for a material breach not remedied within **14 days** of notice, or on the other's insolvency.

7.2 On termination, the Client pays for Services performed to that date. On request, the Contractor will provide a current copy of the Client-specific deliverables (including source code, where applicable) and reasonable handover assistance, billed at the day rate.

8. GENERAL

8.1 The Contractor may subcontract with the Client's prior written consent (not unreasonably withheld) but remains responsible for the Services. Neither party may assign without the other's consent, except the Client may assign to a successor operator of the deliverables.

8.2 The parties will try in good faith to resolve disputes by discussion (then mediation) before commencing proceedings, except for urgent relief.

8.3 This Agreement is the **entire agreement** and supersedes prior proposals. Variations must be in writing and signed. If a provision is unenforceable it is severed and the rest continues. Notices go to the parties' nominated email addresses — Contractor: info@smecai.com.au; Client: [BJC Health notice email]. This

Agreement is governed by the laws of **New South Wales**, and the parties submit to the non-exclusive jurisdiction of its courts.

EXECUTION

Signed for Boab AI Pty Ltd (trading as SMEC AI):

Name	Signature	Date
Andrew Lai		29/06/26

Signed for BJC Health Trading Pty Ltd:

Name	Signature	Date
Errol Lim		25/6/26

Day-rate contractor services agreement | not legal advice